

REPUBLIC OF KENYA
THE JUDICIARY

PERFORMANCE MANAGEMENT & MEASUREMENT UNDERSTANDING

BETWEEN

THE CHIEF REGISTRAR OF THE JUDICIARY

AND

THE REGISTRAR, HIGH COURT

FOR THE PERIOD

1ST JULY 2025 TO 30TH JUNE 2026

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PERFORMANCE MANAGEMENT AND MEASUREMENT UNDERSTANDING

This Performance Management and Measurement Understanding, (hereinafter referred to as "the Understanding"), is entered into between the Judiciary of the Republic of Kenya (hereinafter referred to as "**the Judiciary**"), represented by the **Chief Registrar of the Judiciary of Kenya**, an office established under Article 161(2)(c) of the Constitution (hereinafter referred to as "**the Chief Registrar**") of the one part, **AND** the **Registrar of the High Court** , represented by the **Registrar**, an office established under Section 10(1)(2)(3) of the Judicial Services Act of the other part. The Understanding applies to both the Chief Registrar and the Registrar of the High Court together with their assignees and successors

Whereas:

a) The Constitution of Kenya states that judicial authority is derived from the people and vests in the Courts and Tribunals established thereunder, and stipulates, inter alia, that justice shall be done to all irrespective of status and without undue delay;

b) The Vision of the Judiciary is Social Transformation through Access to Justice as specified in the Blue Print;

c) The Guiding Principles and Outcomes as specified by the Social Transformation through Access to Justice (STAJ)" blueprint are;

   i. Accessibility and Efficiency
   ii. Transparency and Accountability
   iii. Inclusiveness and Shared Leadership
   iv. Cooperative Dialogue
   v. Social Justice

d) The vision is intended to achieve the following outcomes

   i. **A strong institution** that is independent, accessible, efficient, and protects the rights of all especially the vulnerable.
   ii. **An inspired team** of Judges, Judicial officers, and Judiciary Staff committed to excellence in the delivery of justice.
   iii. Strengthened **financial mechanisms** that support the independence and Integrity of the Judiciary.
   iv. Deepened **partnerships** that enhance co-ordination in the administration of justice.
   v. **Enhanced** public trust and confidence in the judicial system

e) The purpose of this Understanding is to enhance accountability for results by focusing on delivery of the mandate of the Judiciary and forms the basis for continuous improvement for the transformation of the Judiciary.

f) This Understanding establishes a framework for clear performance objectives, goals and targets for the Registrar, High Courts.

NOW THEREFORE, THE PARTIES HERETO AGREE AS FOLLOWS:

PART I: COMMITMENTS AND OBLIGATIONS OF THE CHIEF REGSITRAR OF THE JUDICIARY

To facilitate the Registrar of the High Court, the Chief Registrar of the Judiciary shall ensure:

1. Timely provision of adequate human resources;
2. Formulation and implementation of appropriate policies and regulations.
3. Timely provision of requisite financial resources

4. Timely provision of infrastructure, supplies and services as specified in the annual procurement plan

PART II: COMMITMENTS AND RESPONSIBILITIES OF THE REGISTRAR OF THE HIGH COURT

1. Performing such judicial duties and functions as specified by the Constitution of Kenya and the Judicial Service Act;
2. Implementing the High Court Strategic Plan for the period 2023-2027.
3. Developing ELC Annual Work Plan and ensuring that it is aligned with the Constitution, the Social Transformation through Access to Justice (STAJ) and the Judiciary Strategic Plan;
4. Developing comprehensive performance targets as specified in the Performance Targets Matrix hereto;
5. To cascade the Performance Management and Measurement Understanding to Deputy Registrars and staff.
6. Ensuring achievement of the agreed targets as specified in Schedule 2 hereto; and
7. Overall day-to-day administrative management and supervision of the activities of the High Court.

PART III: MONITORING AND EVALUATION

i. The Registrar High Court shall submit, monthly, quarterly and Annual performance reports, based on the performance indicators and targets in the matrix attached hereto, to the Chief Registrar and/or his/her designated representative;
ii. The reports shall be accurate, timely and submitted in the specified reporting formats for purpose of monitoring progress of performance and for annual evaluation.

PART IV: DURATION OF THE PERFORMANCE MANAGEMENT AND MEASUREMENT UNDERSTANDING

The Understanding will run for a period of 12 months, from **1st July 2025 to 30th June 2026.**

PROVIDED ALWAYS that all parties hereto shall act in good faith and take into account any extenuating and exogenous circumstances occurring in the performance period.

SIGNATORIES

Signed: ..... **Date**.....

Hon. Winfridah B. Mokaya
Chief Registrar of the Judiciary

Signed: ..... **Date**.....

Hon. Clara Otieno – Omondi
Registrar of the High Court of Kenya

Witnessed by:

Signed: ..... **Date**.....

Hon. Joseph Were
Chief Magistrate
AJPMC Member

Schedule 1: Performance Targets Matrix, Registrar, High Court

INDICATORS	Unit of Measure	Weight	Baseline 2024/2025		Target 2025/2026
A. CORE BUSINESS/MANDATE PERSPECTIVE			**Actual**	**%**	
1. Improve proximity to courts	%	5		100	100
2. Enhance Efficiency in Determination of Special Bench Cases	%	5		100	100
3. Provide reliable ICT Infrastructure and modernize Registry Records	%	3		95	100
4. Expand the doorways of Justice	%	5		100	100
5. Enhance Access to Legal Information and Legal Aid	%	5		100	100
6. Enhance Access of Justice to Vulnerable groups	%	5		100	100
7. Champion High Court Justice Reforms	%	5		100	100
8. Promote Indigenous Social Justice Jurisprudence and Demos prudence	%	4		100	100
9. Foster a Culture of Shared Leadership	%	5		100	100
10. Enhance Strategic Partnerships and Collaborative Relationships	%	5		100	100
11. Streamline Registry Operations	%	6		100	100
12. Provide administrative support to Judges and Courts	%	5		100	100
13. Supervision of DRs	%	5		100	100
14. Maintenance of Infrastructure and Assets	%	5		100	100
15. Timely submission of quarterly management reports	%	2		100	100
		70			
B. CUSTOMER PERSPECTIVE			**Actual**	**%**	
1. Compliance with Service Charter Standards	%	5		100	100
2. Customer Survey Recommendations	%	5		100	100
SUBTOTAL		10			
C. FINANCE PERSPECTIVE			**Actual**	**%**	
1. Compliance with the set budget level	%	2		99.45	100
2. Implementation of Audit Report Recommendations	%	1		95	100
3. Greening Initiatives	%	2		100	100
SUBTOTAL		5			
D. INNOVATION AND LEARNING PERSPECTIVE			**Actual**	**%**	
1. Service Delivery Innovation	No.	3		1	1
2. Competence Development	%	3		100	100
SUBTOTAL		6			
E. INTERNAL PROCESS			**Actual**	**%**	
1. Corruption prevention and eradication	%	2		100	100
2. Improve employee wellness	%	1		100	100
3. Enhance Employee satisfaction & Work Environment	%	2		100	100
SUBTOTAL		9			
GRAND TOTAL		**100**			

ANNEX 1. EXPLANATORY NOTES FOR THE PMMU TARGETS

A. CORE BUSINESS/MANDATE PERSPECTIVE

A.1 Access to Justice

1. **Improve proximity to courts**
   a. Operationalize 1 High Court sub-registry.
   b. Prepare and Submit a Proposal for the establishment of a Tribunals Appeals Division.

2. **Enhance Efficiency in Determination of Special Bench Cases-**The registrar will facilitate the operation of special benches through;
   a. Facilitating approved special benches activities within 14 days to the activity.
   b. Prepare and submit to the Principal Judge an annual status report on the High Court Special Benches.
   c. Facilitate Gazettement of records for intended destructions/ disposal upon request by High Court Stations/ Divisions.

3. **Facilitate Provision of reliable ICT Infrastructure and modernize Registry Records**
   a. Liaise with DICT to facilitate provision of ICT equipment to court stations based on ascertained needs.
   b. Update the ICT equipment needs as requested by High Court Stations.
   c. Follow up with the Directorate of ICT on facilitation of ICT equipment as per court needs assessment report.
   d. Initiate automation of Principal Registry Operations

4. **Expand the doorways of Justice**
   a. Liaise with AJS Secretariat to provide AJS registers to High Court stations & Divisions.
   b. Facilitate all approved circuit, service weeks and RRIs within the available budget.
   c. Facilitate High Court Stations/Divisions in handling Taxation Matters upon approval.
   d. Develop and submit a needs assessment report for recruitment of ADRs and Legal researchers.
   e. Prepare and Submit to the Principal Judge a Draft paper on the introduction of Mahakama Popote initiative at the High Court.

5. **Enhance Access to Legal Information**
   a. Conduct sensitization forum on court processes and procedures at 10 High Court Stations/ Divisions
   b. Develop and disseminate IEC materials to High Court Stations.
   c. Process all applications for form 30 certificates from Court Stations (High Court, Magistrates Courts, Kadhi's Court) and issue Form 30 certificates upon approval.
   d. Publication of 2000 form 60 notices for succession matters.
   e. Disseminate the High Court Service Week Guidelines to all High Court Stations/ Divisions
   f. Liaise with Deputy Registrars in (15) High Court stations to ensure information on High Court operations is available at the Customer service desks.
   g. Maintain and Update the High Court Website.

6. **Enhance Access of Justice to Vulnerable groups**
   a. Develop a draft of the High Court Service Delivery Charter in Kiswahili
   b. Sensitise stakeholders on the developed initiative that address the needs of vulnerable groups.
   c. Co-ordinate payment of Pro-Bono fees for High Court stations

d. Sensitize at least 100 Judges/Judicial Officers/staff on provision of effective and efficient services to vulnerable groups.

7. **Champion High Court Justice Reforms**
   a. Facilitate the development of a report on criminal justice reform at the High Court.
   b. Develop draft guidelines for Kadhis who sit as assessor in the High Court.

8. **Promote Indigenous Social Justice Jurisprudence and Demos prudence**
   a. Liaise with Deputy Registrars to track the number of High Court cases and Judicial decisions referencing Indigenous laws, customs, and traditions upon request.

9. **Foster a Culture of Shared Leadership**
   a. Liaise with the Deputy Registrars to ensure that stations comply with guidelines for establishment and operationalization of the LMTs.
   b. Liaise with OCRJ to organize a forum between the High Court PJs and the Heads of Stations share and implement best practices and strategies towards effective delivery of justice.
   c. Organize an annual forum for Judges to discuss best practices of the High Court.
   d. Organize an annual forum for Deputy Registrars to discuss registry management
   e. Facilitate meeting between Principal Judge and Presiding Judges of 1 HiCAC region
   f. Facilitate meeting between Principal Judge and Judges of 1 HiCAC region.
   g. Facilitate meeting between Judiciary Spokesperson and Judges.
   h. Implement the relevant resolutions of the Judiciary Leadership Team, Judiciary Management Committee, Judiciary Management Team, Heads of Courts and Heads of Stations

10. **Enhance Strategic Partnerships and Collaborative Relationships**
    a. Organize (1) forum/symposium/conferences with stakeholders to promote access to justice and ensure that the justice system is responsive and adaptive to the changing realities and dynamics.
    b. Facilitate the attendance of the Principal Judge and his nominees to one (1) international engagement upon approval by the Chief Justice.

11. **Streamline Registry Operations.**
    a. Ensure that High Court Registries have all the required standardized registers upon request and subject to availability.
    b. Coordinate sensitization on the High Court Registry Manual in (10) High Court Stations/Divisions.
    c. Monitor implementation of all registry manuals in courts, address recurring issues
    d. Issuance of colour coded file folders and case registers to all High Court stations/Divisions upon request subject to availability
    e. Facilitate typing and submission of proceedings for appeals by the stations upon request
    f. Conduct 10 virtual and 5 physical sensitization forums on the operations of the Principal Registry
    g. Initiate capacity building on preparation of 2nd appeals.
    h. Facilitate implementation of backlog reduction strategy to reduce by 10% above the 2024/2025 baseline.
    i. Track compliance with Hon. CRJ's guidelines on efficient registry management.
    j. Facilitate Gazettement of forfeiture notices within 30 days from the date of issuance of the order and upon submission by the Deputy registrar

12. **Provide administrative support to Judges and Courts**
    a. Facilitate Judges on various administrative requests, prepare quarterly reports on administrative support to judges and address challenges highlighted.

b. Facilitate procurement of robes for (20) High Court Judges.
c. Prepare and submit quarterly administrative support status report to the CRJ.
d. Develop a draft High Court Administrative Support Standard Operating Procedures.
e. Provide Technical Support on budgeting and work planning to 15 High Court Stations/ Divisions.

13. **Supervision of Deputy Registrars**
    a. Conduct spot checks for (15) High Court stations/Divisions.
    b. The Registrar will follow up with stations upon receipt of quarterly report from DSPOP on the timely submission of accurate court returns.
    c. Coordinate with Deputy Registrars to ensure the proper maintenance and timely updating of court records, including registers.
    d. Conduct sensitization forums for Deputy Registrars on registry management and audit issues in (10) High Court stations/Divisions.
    e. Facilitate 4 regional meetings with Deputy Registrars.

14. **Maintenance of Infrastructure and Assets.** The Registrar Will;
    a. Procure and distribute furniture to all High Court Stations upon request and subject to availability.
    b. Update needs assessment as requested by High Court Stations on rehabilitation of buildings.
    c. Follow up with relevant directorates on facilitation as per court needs assessment report.

15. **Timely submission of quarterly management reports**
    a. The Registrar will prepare and submit quarterly performance reports to DSPOP by 5th of the month following the end of the quarter.

B. CUSTOMER PERSPECTIVE

1. **Compliance with Service Delivery Charter:** The Registrar will;
    a. Disseminate the High Court Service Delivery charter.
    b. Monitor compliance with Service Delivery Charter Standards

2. **Customer Survey Recommendations:**
    a. Implement or follow-up on the implementation of the recommendations from the Customer Satisfaction Survey.

C. FINANCIAL PERSPECTIVE

1. **Compliance with set budget level.**
    a. Ensure 100% absorption of the allocated funds and comply with all financial regulations according to the PFM Act.
2. **Implementation of Audit Report Recommendations**
    a. Implement all final audit report recommendations for the Office of the Registrar High Court and address all audit queries
    b. The Registrar will respond to High Court station/Division audit recommendations touching on ORHC upon notification.
    c. Follow up with High Court stations/Divisions on the implementation of internal audit recommendations by 100%
    d. Reduce external audit recommendations by 75%

3. **Greening Initiatives**
   a. Implement paperless initiatives to enhance efficiency and green justice
   b. Implement energy saving initiatives

D. INNOVATION AND LEARNING PERSPECTIVE

1. **Service Improvement Innovations.**
   a. Replicate/adopt any relevant innovations from the list of those identified earlier OR
   b. May come up with one service delivery innovation
2. **Competency Development.**
   a. Identify training gaps for staff in the ORHC and submit to the JSTC for consideration and facilitation
   b. Conduct at least one in-house training for ORHC staff on provision of effective and efficient services to vulnerable groups

E. INTERNAL PROCESSES

1. Corruption eradication: The Registrar will;
   a. Continue sensitizing members of staff on dangers of corruption in staff meetings
   b. Document and maintain records of all reported corruption related issues from various sources including the following; Complaint/corruption feedback forms/Oversight bodies
   c. Implement the recommendations of corruption prevalence surveys and system audits on ORHC by DSPOP, EACC, and other public oversight bodies.
   d. Implement the recommendations of the consolidated integrity reports from OJO
   e. Implement strategies to address reported and other corruption related issues.

2. Improve Employee wellness:
   a. Maintain the ORHC staff welfare program
   b. Organize one team building event for staff.

3. Enhance Employee Satisfaction and Work Environment:
   a. Hold quarterly staff meetings and discuss emerging issues affecting staff welfare.
   b. Implement or follow-up on the implementation of the recommendations from the Employee Satisfaction and Work Environment Survey